



THE GROWING COST OF DENYING YOUNG PEOPLE ACCESS TO SHELTER

A reflection on the Coalition Government's recent changes to the Emergency Housing System





INTRODUCTION

Everyone should have access to safe and stable housing in Aotearoa, a place where they are able to build community and connections, and access the amenities and services they need to thrive. Right now, young people are increasingly experiencing homelessness, which is made worse by recent changes to emergency housing rules which are denying people access to the basic right of shelter.

In August 2024, the Government announced changes to emergency housing rules. This includes more scrutiny at Work & Income when applying for Emergency Housing Special Needs Grants (EH-SNG), and a more punitive approach for not meeting obligations, including a 13 week stand down and removal from the housing register. Despite many people accessing emergency housing because they cannot afford private rentals, or their current situation is unsafe or unsuitable - Work & Income are putting more pressure on people to find "suitable alternatives" despite a lack of permanent public housing available.

These changes have led to an increase in the number of applications denied. This report highlights the experiences of young people seeking housing support from Work & Income, and speaks to the impact that recent changes to the emergency housing system have had on access to shelter and support for young people experiencing homelessness.

Kick Back works proactively with our community to ensure that young people can access health care, mental health and addiction support, legal advice and where we can, employment, education and work readiness support through The Front Door (our early intervention and crisis response service). However, access to shelter (as a first step) and then stable housing after that, remains the key challenge.

The number of young people Kick Back is serving is growing weekly. New young people are arriving at The Front Door each week with a critical and emergency housing need.

We are finding that a lot of our time is becoming focused on having to provide our young people with support and advocacy to navigate Work & Income in order to access shelter and meet the obligations the Government has put in place. This is acting as a barrier to being able to focus on supporting rangatahi to achieve their core goals of finding stable housing, looking for mahi, or getting connected into education.

As the case studies in this report will demonstrate, the young people that Kick Back serves are having to rely on advocates at every step to navigate the system. Advocates are having to escalate cases in order to ensure young people get access to temporary shelter and are not forced onto the streets.

Although there are some examples where we have had some successes, including having recently had a young person move into permanent public housing, enabled through ongoing collaboration and collective mahi with both MSD and the wider community, there are some key challenges.

ABOUT KICK BACK

Kick Back is a Youth Development organization responding to Youth Homelessness. We have three central focus areas, Education (supporting our community and sector to grow our collective mātauranga regarding Youth Homelessness in order to better serve and care for rangatahi experiencing homelessness), Advocacy (working to create greater public awareness of Youth Homelessness within the community, Government, and wider society in order to play our part in supporting our collective efforts of preventing and ending youth homelessness) and Innovation (piloting innovative solutions, that focus on addressing gaps in the system, in order to contribute to developing the mātauranga and models needed to close them).

ABOUT THE FRONT DOOR

The Front Door is one of our current projects, it is a central rangatahi HUB in Auckland central that acts as a crisis response and early intervention service for young people experiencing homelessness. Through The Front Door, Kick Back works to address homelessness at several levels, through early intervention and prevention services (intervening early, connecting rangatahi with wrap around support and advice to ensure that their experience of homelessness are brief or prevented all together), Housing Stabilization (working to ensure that young people with previous experiences of homelessness are provided with the additional support necessary to stabilize their housing), and Intensive support (providing intensive wrap-around support to young people experiencing homelessness).

Through The Front Door, Kick Back is also working at a systems level, to close gaps in services for young people, meaning that instead of going to multiple doors to get support, we bring the services our young people need to The Front Door opening up access to health care, mental health support, legal services, and ongoing advocacy and housing support through our incredible partners within the sector.





OUR RANGATAHI

Kick Back is currently monitoring:

- ➔ Roughly 77 young people with experiences of homelessness.
- ➔ 56 of these are in our Early Intervention and Intensive Support teams (meaning they are actively experiencing homelessness), with the remainder being in our Prevention and Housing Stabilisation support teams.

The rangatahi we serve have a range of support needs. They are often experiencing interconnected systemic harm – significant trauma, neglect, been through the care system, have had interactions with the justice system, been victims of abuse, suffered due to neglect and will be managing mental health and addiction.

AROUND 41% OF THOSE WE SERVE REPORT HAVING AN EXPERIENCE OF MENTAL HEALTH, WHILE 33% REPORT THAT THEY ARE STRUGGLING WITH AN ADDICTION

(note: we believe this to be a significant undercount, as data is dependent on whether a full assessment was able to be conducted and recorded. We suspect the number of young people struggling with mental health and addiction to be much higher than what we have currently been able to record).

DEMOGRAPHICS

- 56% of all those we serve identify as tangata whenua
- 19% are pākehā
- 8% are tangata moana
- 8% were from migrant communities.

- 55% are tane
- 41% wahine
- 4% identify as trans or non-binary.

- 26% are between 16-17yrs
- 28% are between 18-19yrs
- 36% are between 20-24yrs
- 8% are between 12-15yrs old.

1 THE SYSTEM IS NOT RESPONSIVE TO CRISIS:

Our observation is that the system is not designed to support people in crisis, especially when that crisis involves an immediate housing need. As the below examples demonstrate, the system is not equipped to respond to the complexity of the crisis young people are experiencing.

Kick Back is observing that those presenting at The Front Door with a critical housing need, are often accessing our service near the end of the day, at a time when Work & Income is beginning to close (it is becoming increasingly common to have walk-ins in critical need between 4-6pm). As we know, personal life crises cannot be limited to regular business hours, and with Work & Income and the wider MSD system not designed to respond to young people outside of regular hours, there are significant gaps in accessing support.

"I TRIED TO REPAIR MY RELATIONSHIP WITH MY PARENTS, I GOT KICKED OUT AGAIN, BUT THEN I WENT TO ASK FOR HELP FOR EMERGENCY HOUSING AND I GOT DENIED. THEY TOLD ME THAT I WILLINGLY GAVE MY TRANSITIONAL HOUSING AWAY (BECAUSE I ENDED MY TENANCY WHEN I WANTED TO TRY AND RECONNECT WITH MY PARENTS). I SLEPT ON THE STREETS THAT NIGHT." YOUNG PERSON, 16-17 YEARS

CASE STUDY #1:



Recently we had a young person (22yrs, wahine, care experienced) who came into The Front Door to access advocacy support with Work & Income. She had called Work & Income to explain that she had to leave home due to risks to her safety and wellbeing. She is a young care-experienced rangatahi with limited safe whānau or community networks. She was informed that her local Work & Income office was not accepting walk-ins for emergency housing, that there was no availability for housing that day, and that she should wait two days for a call, and if no one was in touch, she should ring back. That night she walked around the city centre most of the night with nowhere safe to sleep. The next day we were able to connect with her and support her to walk into a local Work & Income office and advocate for her to receive emergency housing.



CASE STUDY #2:



We recently had a young person walk into The Front Door (queer, 20yrs) just prior to 5pm on a Friday evening. The young person was fleeing domestic violence. They had no friends, and no whānau networks in New Zealand. As it was too late to get the young person down to their local Work & Income office, we attempted to call the 0800 number which according to MSD's website is available for calls up until 6pm. We managed to ring through before 5pm and though we called through several times, the phone line went through the options, then advised to come back Monday and hung up on us. We also attempted to contact Women's refuge which had no capacity to support that night and reached out to several other NGOs that provide Emergency & Transitional Housing to explore availability.

Unfortunately, the services we connected with either didn't have availability or couldn't take a young person with an immediate housing need. After several hours of working through this situation we were able to connect with an NGO who was able to free up a room for the young person to access.

If a vacancy hadn't become available, and if Kick Back did not have relationships across multiple different housing services, the young person would have had to either return to their abuser where they would have been at-risk of further violence and abuse, or be forced to have slept rough that night.

CASE STUDY #2:



Another rangatahi (tane, between 16-17yrs), came into The Front Door after 5pm in critical housing need. We reached out to his youth service youth worker and our contact within the MSD housing team. While doing so we also rang the MSD 0800 number. The 0800 number had us on hold for 20-30 minutes, answered, and then hung up (after ringing back, the queue was closed, and we couldn't get back in touch). Our colleagues within MSD were supportive, however explained due to the young person's age we needed to go through the youth service provider. The youth service provider had closed for the day; however we had a relationship with the general manager of this particular provider who was able to connect with their team and ask a member of their team to be available to create a task for the Youth Service Support Unit (YSSU). There was no ready or available emergency housing that the provider could find, however Kick Back had a relationship with a motel and through our connections we were able to create an opportunity for the young person, which the Youth Service provider was then able to sign off. In this case, we were able to work together collectively in order to ensure a good outcome for the young person that night. However, this example highlights that the system itself is not designed to meet the needs of young people in their moment of crisis and instead is reliant on community organisations to plug the gaps in process. Our ability to access shelter for this young person relied largely on luck and personal connections. If the young person had attempted to access support without an advocate (and one without the right connections), they would not have been able to and would have continued sleeping rough that night.

2 THE SYSTEM IS NOT TRAUMA INFORMED:

MSD Kaimahi appear to lack critical knowledge around trauma, mental health & disability support, and youth homelessness

"People stay in dangerous situations, because it's better than leaving... it's terrifying. They don't even give you a break, they treat you like a robot, rather than a human, it's dehumanising" - young person, 16-17 years

A common experience young people share with Kick Back, is that they reach out for support from Work & Income and are told that they 'aren't actually homeless', and instead that they need to go home, or work harder to find alternative housing.

Young people commonly report to us that they do not feel safe going to W&I, and that they are not believed or supported when they do. Our observation is that W&I kaimahi do not universally have the skills to operate in a trauma informed manner, lack critical understanding regarding addiction, mental health, and youth homelessness and thus are ill-equipped to conduct meaningful assessments.

"I'm drained with everything, not having accessible housing, having to fight to access emergency housing, I feel like I'm treated like a criminal for needing the basic right of accessing shelter. The Government treats me like I'm a burden on its back."

16yrs, genderfluid, ADHD, Disabled, 3 months in Emergency Housing

This is leading to young people being denied support, when a meaningful assessment would demonstrate that they are at significant risk of harm.

CASE STUDY #4:



Kick Back recently supported a young care experienced wahine (between 20-24yrs), with significant mental health and disability needs, who was told that she was not eligible for emergency housing, despite sleeping rough, having no resources to draw from to access shelter, and having grown up within the care system. She was sleeping rough due to a fire that had destroyed her unit making it uninhabitable. We were informed that the primary reason she was ineligible was because over the week since the fire, she had not contacted her landlord or reached out to MSD for support. We were also told that she had a tenancy, and though MSD recognised that the unit itself was uninhabitable due to the fire, this was another barrier to them providing support. The reasons provided did not account for the young wahine's disability, or mental health and her experience of trauma and abuse at the hands of people in positions of power and government institutions. It also failed to account for the reality that the young person was sleeping rough, had nowhere safe to go, and that the young person had previously reached out to MSD for support when she had been sleeping rough in the past and been told that emergency housing was no longer available. If all of this was understood, it would provide important context and rationale for why a young person in her situation might not seek support from MSD.



3 THERE APPEARS TO BE CONFUSION AND VARIANCE IN THE SYSTEM REGARDING EMERGENCY HOUSING ELIGIBILITY:

There seems to be genuine confusion within the system about how the eligibility criteria for Emergency Housing should be applied. Kick Back has been informed by several case managers that emergency housing is not available to single people at all, due to government policy. When we queried this with a local Work & Income site manager, it was confirmed to us that this was MSD's position. However, after looking at the available information on the MSD website and listening to Minister Potaka (who has repeatedly stated that there will always be emergency accommodation for those with genuine need), we could not find any confirmation of this policy. We also queried this with the Regional Director of our region and was told that MSD does not have a policy regarding not granting emergency housing to single people. And yet this is routinely being provided as a reason for a decline.

"I have been there, asked them for emergency housing, and they told me no, you can't get emergency housing unless you're a couple. It makes you feel unheard. I was staying on the streets at the time." - young person, 20-21 years

There are other reasons and explanations given including:

- ➡ That MSD doesn't provide emergency housing at all anymore
- ➡ That a young person needs to have applied for private rentals and transitional housing services themselves before seeking emergency housing (which is not always possible considering the circumstances of an emergency situation)
- ➡ That young people are to blame for their experience of homelessness, and so are not entitled to support

CASE STUDY #5:



We recently had another situation where a young wahine (18-19yrs) was denied emergency housing despite sleeping rough, having attempted to seek alternative housing, and having no safe whānau or friends that could support her. Kick Back and one of our partners, Massey Community Trust had been working with her to make referrals to transitional housing providers and searching for alternative housing options, however with no success. In her appointment with Work & Income she had communicated that she was unsafe, that she was attempting to escape a man who had power over her, and that she feared for her life if she were to return to sleep rough that night. She was told that she wasn't entitled to emergency housing, that emergency housing was not provided to single people, and that she should instead return home. This experience was traumatising for this young wahine, and the result was that she returned to the streets.

4 GROWING CONCERN ABOUT INCREASING RISK OF SUICIDE FOR OUR YOUNG PEOPLE:

The young people we serve often experience a range of mental health and wellbeing challenges – depression, anxiety, histories of trauma, suicidal ideation and self-harm. Kick Back has growing concern that the way the system is set up is putting undue stress on individuals, exacerbating mental illness and increasing the risk of suicide. As a direct consequence of some of the changes that have been implemented over the last few months, we are observing increased instability for young people as they face more barriers to shelter.

"The changes to emergency housing have made me feel like I'm not good enough, they won't help us, they don't care, it's like I'm talking to a brick wall, saying the same shit over and over again, I hate it... It makes me feel alone."

Though access to Work & Income has always been challenging for young people, we have noticed a marked difference in our ability to gain – and maintain – shelter for young people. Kick Back is currently monitoring several groups of rangatahi who have been denied shelter from MSD or been unable to secure stable housing. These young people are couch surfing, moving between transitional and emergency housing, and at times sleeping rough on the street. This lack of stability is leading to feelings of hopelessness and powerlessness and having a detrimental impact on the mental health of several of our rangatahi.



It should also be highlighted, that for many of the young people we serve, their “available support networks” are other young people in similar situations. So, when they are denied support to access shelter, they are being supported by their friends, who are then putting their own emergency or transitional shelter at risk.

As mentioned above, young people with experiences of homelessness, have often experienced significant trauma, have mental health conditions, and a significant portion have disabilities (such as Fetal Alcohol Syndrome). The environments young people have access to are often unstable, unsuitable to their health and wellbeing, and can exacerbate the harm they are experiencing. The system in its design does not appear to be able to account for this.

CASE STUDY #6:



A young person we have been supporting (16-17yrs, tane), had his emergency housing cancelled due to an encounter he had with another young person in a different emergency housing complex. The young person had been experiencing homelessness for over a year, and over the last few months that experience had become more pronounced (a combination of couch surfing, sleeping rough, and where he could get it, emergency housing). After an incident occurred between himself and another young person (also in emergency housing, in another part of the city), his emergency housing was cancelled, and he was informed he needed to rely on his own networks. This particular young man is on the Youth Payment (so has a demonstrated whānau breakdown, meaning he cannot rely on his whānau for support). He is from a migrant whānau, and has limited wider whānau networks to rely on, and no safe or stable friend networks available to him (which is why he was in emergency housing).

By cancelling his emergency housing, this young man was pushed into a more dangerous and precarious situation, alternating between sleeping rough and couch surfing in hostels with older young people. Over the period the young person experienced homelessness, our team observed the young man's mental and physical health deteriorate. He became increasingly unwell and began to rely on a range of substances as a way to cope with the trauma he was experiencing.

Over the period that he was sleeping rough, our concerns for his wellbeing grew, and our concerns that he was becoming at risk of suicide began to increase. Kick Back worked closely with his youth service provider to advocate for him to receive emergency housing and to support transitional housing referrals. However, despite communicating to MSD the significant harm this young person was experiencing, and the risk the lack of shelter was posing to his life, Kick Back were informed that due to the incident he had been involved in he was not entitled to emergency housing and that transitional housing was limited. In the meantime, his health and wellbeing continued to decline and his ability to meet his obligations (turn up to appointments, be supported to look for housing etc) was impinged due to being increasingly unwell. Eventually he was able to access a transitional housing vacancy, but not after several weeks of sleeping rough, and experiencing significant trauma, abuse and harm.



STRUCTURAL CHANGE IS NEEDED: DUTY TO ASSIST LEGISLATION REQUIRED TO CLARIFY THE GOVERNMENT'S RESPONSIBILITY

"They have never slept on the streets... as ministers, the Prime Minister... Has he felt unsafe before? ... has [the Prime Minister] lived on a bus stop, has he been stranded anywhere, has he been kicked out? No. You have got to understand other people's situations, instead of making it black and white. You're trying to make it black and white, but it's just adding more problems." - young person, 16-17 years

"Everyone tells you have human rights, that you have a right to safe and warm housing, that you have a right to education, but I couldn't go to school, why? Because I couldn't make it there. I was in emergency housing." - young person, 16-17 years

Kick Back has been working with Auckland Action Against Poverty and Action Station to campaign for the implementation of Duty To Assist legislation. We believe that structural change is necessary in order to clarify the state's responsibility when supporting people at risk of homelessness and ensure that people in dangerous and vulnerable situations get the support that they need.

We believe the New Zealand Government should follow Wales in implementing Duty to Assist legislation. Duty to Assist legislation clarifies the responsibility held by the Government, health professionals and community social services to provide support to people who are experiencing homelessness or at-risk of homelessness. It is a practical way to legislate a right to a decent home.

As articulated in this report, under current Government policy, if a person is at-risk of homelessness, or sleeping rough, they can turn up to Work & Income, ask for support, and be denied access to shelter. However, if Duty to Assist legislation was in place, the state would have a positive obligation to do all they could do to intervene, providing the necessary support required to prevent a person from experiencing homelessness.

Duty to Assist would mean that if a person reached out to a public or community social service experiencing homelessness or at-risk of homelessness, there would be a legislative duty to assess and then assist that person to stay in their current housing, be supported into short-term accommodation, and then continue to be supported into long-term secure housing.



Despite what we know about homelessness in Aotearoa, current Government policy places the burden of responsibility on individuals impacted by our broken housing system and rising cost of living. Duty to Assist legislation shifts the power, taking a pragmatic and evidence-based approach.

We know that we have the resources and levers available to end homelessness in Aotearoa. We saw a window into this during the Covid lockdown period, when collectively we decided that it was unacceptable that children or whānau should be abandoned to sleep on our streets.

This showed us that when we have the political will to do so, we can make the political choices necessary to ensure that everyone has access to their most basic human needs. Duty to Assist requires the Government to acknowledge the reality that homelessness is not an issue of individual moral failure, but largely the result of widespread, systemic failure, which is directly impacting individuals and creating the conditions for homelessness to become reality.

Homelessness is not an individual moral problem. It exists because of an economic system which treats housing as a commodity to profit from, rather than a social good that everyone should have access to. Our political system is currently geared towards supporting this process, rather than making sure that everyone has access to decent, stable and permanently affordable housing.

It is possible to end homelessness within Aotearoa. However, to do so, we need to address the deeply embedded structural realities that enable the conditions for homelessness to exist.



Housing (Wales) Act 2014

Where a local housing authority is required by this Chapter to help to secure (rather than “to secure”) that suitable accommodation is available, or does...

 legislation.gov.uk

3 - https://tikatangata.org.nz/human-rights-in-aotearoa/right-to-housing_





16YRS-17 YEAR OLD YOUNG PERSON

What was your experience of asking for help from MSD?

"It was humiliating, no one wants to ask for help, especially from a Government that takes more than it gives. They ask for so much, they don't give you any slack, they assume you're lazy, before they even talk with you."

"No one wants to be homeless; no one wants to be living off the damn government, housing should be a human right."

"Labelling people as lazy, rather than realizing people have gone through a lot, people in emergency housing have gone through a lot. The Government should be offering therapy."

"People stay in dangerous situations, because it's better than leaving... It's terrifying. They don't even give you a break, they treat you like a robot, rather than a human, it's dehumanizing."

What has your experience of Emergency Housing been like?

"It's honestly been scary... It's the part about being in Emergency Housing that they want proof that you're doing all you can to get out of emergency housing, otherwise there is an underhanded threat that they will kick you out!"

"I'm doing all I can to access housing, and they still want more, it's a never-ending cycle. I understand the point of emergency housing is that it's not long term, and they want to get me out of it, however there aren't any other options available to me that are suitable for my needs, and they keep giving me what is available without checking if they are suitable for me."

What is the Impact of MSD's process?

"Honestly, I'm drained... I've genuinely considered checking myself into a psych ward so I wouldn't have to worry about the stress."

"I'm drained with everything, not having accessible housing, having to fight to access emergency housing, I feel like I'm treated like a criminal for needing the basic right of accessing shelter. The Government treats me like I'm a burden on its back."

" – 16yrs, genderfluid, AuDHD, Disabled, 3 months in Emergency Housing

How has Kick Back/The Front Door helped you?

"It's a great idea, it's a great place to come and hang out, relax, and I like the security, that if shit went down, I could call you in the middle of the night. It feels like a safe place."

"Being able to cook at The Front Door, makes me feel a lot more human. It's dehumanizing living in emergency housing."

"It just feels humanizing to come here, you guys know my situation, I'm immediately understood..."



20-21YR OLD YOUNG PERSON

What was your experience of asking for help from MSD?

"Shit, they don't help me half the time... It feels like they aren't listening, like I'm talking to a brick wall half the time."

"I have been there, asked them for emergency housing, and they told me no, you can't get emergency housing unless you're a couple. It makes you feel unheard. I was staying on the streets at the time."

"Asking MSD for help makes me feel shit, unfair, unheard!"

What is the Impact of MSD's process?

"The changes to emergency housing have made me feel like I'm not good enough, they won't help us, they don't care, it's like I'm talking to a brick wall, saying the same shit over and over again, I hate it."

"It's makes me feel alone."

How has Kick Back/The Front Door helped you?

"Ultra, they got me Emergency Housing, when WINZ wouldn't help me. I come here every day. Because I like being here, it's like a community, we all hang out, it's a family, it makes me feel like I belong somewhere."





16YRS-17 YEAR OLD YOUNG PERSON

What was your experience of asking for help from MSD?

"I tried to repair my relationship with my parents, I got kicked out again, but then I went to ask for help for emergency housing and I got denied. They told me that I willingly gave my transitional housing away (because I ended my tenancy when I wanted to try and reconnect with my parents). I slept on the streets that night."

"It was bad (on the streets) because there was so many people on really bad drugs, I got my stuff stolen, my cloths, my phone..."

"(Asking MSD for help) feels like false promises, like I'm an inconvenience, like false hope..."
"A lot of times I don't sleep (when sleeping rough), I have to stay awake, roaming the streets at night, no way of contacting anyone. It's not safe..."

"Mostly weekends I struggle, weekdays, are ok, I can come back to Kick Back and hang out, but the weekends are the worst. I stay out, sleep in the library, wander the streets. I can't sleep in the streets, because I get my stuff stolen."

"They have never slept on the streets... has the ministers, the prime ministers, does he know what it's like to be beat up for no reason, to have his shit taken for no reason, does he know? Has he lived in a place where it's mouldy, gotten sick? Has he felt unsafe before? Like someone is going to come and kill you unsafe? Has he? He doesn't understand... How do you expect him to run a country, when he doesn't know what it's like, how is this helping?"

"They try and make it black and white, to ignore the variables that people have gone through... has (the Prime Minister) lived on a bus stop, has he been stranded anywhere, has he been kicked out? No. You have got to understand other people's situations, instead of making it black and white. You're trying to make it black and white, but it's just adding more problems."

"A lot of these people who make these decisions, haven't had these experiences. If they did, they would understand. If the people who have been in these situations, can be there, directing them, maybe something can be changed, flipped around, they just need some guidance."

What has your experience of Emergency Housing been like?

"Every one tells you have human rights, that you have a right to safe and warm housing, that you have a right to education, but I couldn't go to school, why? Because I couldn't make it there. I was in emergency housing."

What is the Impact of MSD's process?

"People aren't stupid, they treat you like you're in primary, like we're stupid. They look at us like we're not human..."

"The restrictions aren't fair, they put all these rules in, all these obligations, how are they meant to help someone who needs help."

"Anyone should be able to just go and tell them they are sleeping on the street and get help."
"My friends got denied straight away, they were left to live on the street."



How has Kick Back/The Front Door helped you?

"Kick Back helped me get a house, helped me navigate MSD, it helped me knowing that there were people that could help me."

"I got help with cutting down on drugs, Kick Back motivated me to go sober, to change my life around. You guys helped me mentally and physically, gave me food and cloths. The things that are really hard to get, basic needs that are really hard to get, when you're on the street. A place to come back to, to sleep during the day, so that even if I was on the street, I could stay awake."

"Kick Back helped me to contact MSD and get emergency housing, it was really hard to get Emergency Housing, I tried so many times to get help by myself, it didn't work."

"I wouldn't be here, I'd be dead or something, if it wasn't for Kick Back's support. Gave me a place, you guys managed to get me under a roof, warm. Because it was cold and rainy, you gave me a place to get me a shower, soap, warmth, a place to get access to my basic needs."

"I could come here, refer my mates here, and you wouldn't judge, just understand their situation, give them help."

"I shouldn't be having to navigate through MSD in the first place, it should be easy to access, not hard to access. It feels like they are trying to have people on the streets."

"I was willing to work, I was trying to find a job, they aren't helping."





FAQ - DUTY TO ASSIST PETITION



What is Duty to Assist?

Duty to Assist legislation places responsibility on the Government, health professionals and community social services to provide support to people who are experiencing homelessness or at-risk of homelessness.

This means if a person comes to a public or community social service experiencing homelessness or at-risk of homelessness, there would be a legislative duty to assess and then assist that person to stay in their current housing, be supported into short-term accommodation and then continue to be supported into long-term secure housing.

Sounds good, but what does Duty to Assist actually look like?

Good question, imagine you had nowhere to go tonight. Under the Government's current policy, the state has no clear obligation to provide you with support. This means you might reach out to Work & Income, and there is no guarantee that you will be granted shelter. Even if you do, you will likely be shoved into a hotel or hostel, and if you are unable to secure housing in a set period of time, you could very well find yourself on the street. The state has no obligation to house or support you.

Under Duty to Assist legislation the state would be accountable for supporting you into stable housing. This could look like providing you with shelter via Emergency Housing as a first step. However accessing Emergency Housing is not enough to discharge the Duty to Assist. The state would also be required to support you to access permanent and stable housing such as referrals for public housing, or provide you with a bond to access a private rental.

If you wanted to relocate, MSD could support you to move cities, pay for moving costs, or pay for storage of your belongings until you have found suitable accommodation.

So is Duty to Assist about the human right to housing?

Exactly, Duty to Assist legislation provides a framework for recognising our most basic human right - the right to housing. The legislation is person centred, and requires the state to acknowledge people's agency. Duty to Assist legislation requires the state to listen to the needs of people facing homelessness, and to support us to develop our own housing plan. Under current Government policy, if you are experiencing homelessness and you decline a housing option offered to you by the state (perhaps because it wasn't close to your child's school, or because it wasn't in your local community, or even because the house didn't meet the needs of you or your family), you can be penalised and lose access to support or shelter. Under the Duty to Assist, the state cannot discharge their responsibility by dictating a housing option to a person. If you are offered a place to live but it does not meet your needs or those of your whānau, you can decline that option without penalty.



How does Duty to Assist prevent Homelessness?

Duty to Assist prevents homelessness by requiring the state, health professionals and community organisations to do what they can do to prevent a person from experiencing homelessness.

The Duty to Assist would mean that the state would have responsibility to do all they can do, to prevent you from experiencing homelessness.

Under current Government policy, if you are at-risk of homelessness, you can turn up to Work & Income, ask for support, and be told to come back once you are already experiencing homelessness. Under the Duty to Assist the state would have a positive obligation to do what they could do to prevent your experience of homelessness, up to 6 months from when you think you might be at risk.

For example, say you're facing an eviction. Perhaps due to the rising cost of living, low wages and rising rents you fall behind on your rent payments. Your child was sick, your car broke down, the winter was cold, and you've made impossible decisions between feeding your children, heating your home and paying your rent. You've missed several payments, and now you are at risk of eviction.

You could reach out to Work & Income, and they would be able to support you by engaging with your landlord. They might pay your rent arrears bringing you back to zero. They could then look at what other supports you require to assist in stabilising your housing in order to keep you housed. That could be supporting with transport costs for a period of time to assist you getting your kids to school, a Winter Energy payment, to get you through the winter, a food grant, to help alleviate the burden, while you get back on your feet.

How does Duty to Assist respond to 'no cause evictions'?

Under the Duty to Assist, landlords would be required to notify MSD if they were planning to issue an eviction notice. If a landlord failed to uphold their Duty to Notify, the eviction notice would be null and void.

Once notified, the state's Duty to Assist kicks in. MSD would then be required to reach out to the family facing eviction, ensure they have a solid housing plan in place, and do what they can do to prevent homelessness. This could look like engaging with the landlord to explore what support is needed to avoid eviction e.g. supporting with rent arrears.

This provides a protection for renters, meaning they are able to receive the help and assistance required to prevent them from experiencing homelessness. It also supports landlords, by ensuring that where - due to poverty and the cost of living crisis - there are challenges around rent arrears, that they are able to receive assistance to resolve these in a manner which does not cause harm to those renting the home.

How does a Duty to Assist support people into stable housing?

Having Duty to Assist legislation means that even if a person is supported into temporary or short-term accommodation, the state still has a duty to ensure people secure long-term housing, and cannot discharge their Duty to Assist until this is the case.

This will place the necessary pressure on the state to build and provide stable and permanently affordable public housing. It also shifts the power, taking a pragmatic, evidence based approach, Duty to Assist requires the Government to acknowledge the reality that homelessness is not an issue of individual moral failure, but largely the result of widespread, systemic failure, which is directly impacting individuals and creating the conditions for homelessness to become reality.



We will end homelessness, keen to be part of the movement?

Homelessness does not need to exist in Aotearoa. We can end it. Duty to Assist legislation provides us with the structural change we need in order to begin building an Aotearoa New Zealand where homelessness is no longer a reality for our people.

Want to join the movement? You can help by signing our petition, and then asking your friends to



ActionStation
people powered change



Sign the petition 'Demand the Government support people experiencing homelessness' today! Scan the QR code, or follow the link here:

<https://our.actionstation.org.nz/petitions/demand-the-government-support-people-experiencing-homelessness>

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